

“evidence suggests that the dangerous condition was present for a sufficient amount of time.” (*Id.*)

2.

CASE #	CASE NAME	HEARING NAME
CVSW2400784	DUANE KARTCHNER AND DONNA KILPATRICK VS JOHNSON	MOTION TO BE RELIEVED AS COUNSEL FOR AARON JOHNSON

Tentative Ruling: Hearing Required.

3.

CASE #	CASE NAME	HEARING NAME
CVSW2400784	DUANE KARTCHNER AND DONNA KILPATRICK VS JOHNSON	MOTION TO BE RELIEVED AS COUNSEL FOR ARIANNA JOHNSON

Tentative Ruling: Hearing Required.

4.

CASE #	CASE NAME	HEARING NAME
CVME2502324	OROSCO VS STATER BROS MARKET	DEMURRER

Tentative Ruling: Special Demurrer for Uncertainty Sustained with 20 days leave to amend.

On March 25, 2023, Plaintiff Stephanie Orosco (“Plaintiff”) was a patron at Defendant Stater Bros. Market (“Stater Bros.”) in Lake Elsinore. As Plaintiff was walking towards the exit, she was followed and questioned by Defendant John Doe (“Doe”), a security guard for the subject premises. Plaintiff alleges Doe physically attacked and assaulted her with such force that she suffered injuries and damages. On February 28, 2025, Plaintiff filed her complaint alleging five causes of action: 1) assault (against Doe only); 2) battery (against Doe only); 3) intentional infliction of emotional distress (against Doe only); 4) negligence (against all Defendants); and 5) negligent hiring, supervision and retention (against Stater Bros. and Does 1-50).

On May 12, 2026, Plaintiff filed an Amendment to the Complaint naming Andrew Montano as Doe 2 (“Montano”).

Montano now demurs to the 4th and 5th causes of action on the ground each fails to state facts sufficient to constitute a claim against him. (C.C.P., § 430.10(e).) He also argues the entirety of the complaint is vague, uncertain, and unintelligible as to the things alleged and the theories of liability that Montano is being called upon to account for. (C.C.P. § 430.10(f).) Montano states he has been named in place of Doe 2, but the complaint attributes all alleged misconduct to a separate individual identified as “John Doe, a security guard.” It contains no factual allegations regarding Montano’s alleged personal liability whatsoever.

Plaintiff opposes and argues she has adequately alleged each of the fictitiously named Defendants is responsible in some manner for the occurrences herein alleged, and that

Plaintiff's damages as herein alleged were proximately caused by those Defendants, and once she substituted Montano for Doe 2, those allegations apply to him too. She argues discovery conducted after the filing of the Complaint has identified additional facts concerning Montano's personal involvement, demonstrating that any perceived pleading deficiency concerning his role can readily be cured by amendment.

In reply, Montano argues the opposition confirms the defects. Indeed, after the filing of the opposition, Plaintiff voluntarily dismissed John Doe and submitted a declaration asserting that Andrew Montano and John Doe are the same person. The complaint alleges intentional torts against John Doe with no facts against Doe 2, which Montano is named. If Plaintiff is now contending John Doe and Montano are the same, that theory is nowhere in the pleading currently before the court. Moreover, the opposition repeatedly relies on facts not appearing in the Complaint.

Demurrer Standard - A demurrer to a complaint may be general or special. A general demurrer challenges the legal sufficiency of the complaint on the ground it fails to state facts sufficient to constitute a cause of action. (C.C.P., § 430.10(e).) A general demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. (See *Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994 [in ruling on a demurrer, a court may not consider declarations, matters not subject to judicial notice, or documents not accepted for the truth of their contents].) For purposes of ruling on a demurrer, all facts pleaded in a complaint are assumed to be true, but the reviewing court does not assume the truth of conclusions of law. (*Aubry v. Tri-City Hosp. Dist.* (1992) 2 Cal.4th 962, 967.)

A special demurrer challenges other defects in the complaint, including whether a pleading is uncertain. (C.C.P., § 430.10(f).) The term uncertain means "ambiguous and unintelligible." (*Id.*) A demurrer for uncertainty should be sustained if the complaint is drafted in such a manner that the defendant cannot reasonably respond, i.e., the defendant cannot determine what issues must be admitted or denied, or what counts are directed against the defendant. (*Khoury v. Maly's of California, Inc.* (1993) 14 Cal.App.4th 612, 616.)

Leave to amend must be allowed where there is a reasonable possibility of successful amendment. (See *Goodman v. Kennedy* (1976) 18 Cal.3d 335, 349 [court shall not "sustain a demurrer without leave to amend if there is any reasonable possibility that the defect can be cured by amendment"]; *Kong v. City of Hawaiian Gardens Redevelopment Agency* (2002) 108 Cal.App.4th 1028, 1037 ["A demurrer should not be sustained without leave to amend if the complaint, liberally construed, can state a cause of action under any theory or if there is a reasonable possibility the defect can be cured by amendment."].) The burden is on the complainant to show the Court that a pleading can be amended successfully. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

Merits - The only causes of action against Doe 2, who Montano has been named in place of, are the 4th and 5th causes of action. As to Does, the complaint alleges: "Plaintiff is informed and believes and thereon alleges that each of the fictitiously named Defendants is responsible in some manner for the occurrences herein alleged, and that Plaintiff's damages as herein alleged were proximately caused by those Defendants."

(Comp., ¶ 5.) She also alleges all Defendants are the agents, servants, and employees of their co-defendants. (*Id.* at ¶ 6.) She alleges “Defendants, and each of them, formed a special relationship between the security company and/or security guards and subject premises.” (*Id.* at ¶ 34.)

Despite these general conclusory allegations as to Doe 2, Plaintiff argues in opposition and subsequent filings that Montano is actually John Doe, not Doe 2, as he is currently alleged to be. This is not alleged in the present complaint and alters the legal landscape. Plaintiff’s representation in opposition that discovery revealed Montano was personally present and interacted with Plaintiff before she fell suggests a direct negligence theory may be viable if properly pled. The negligent hiring claim, by contrast, does not fit the facts as represented, Montano allegedly acted directly, not as a supervisor who negligently hired John Doe. If Montano *is* John Doe (as the recent dismissal suggests), then the 5th cause of action against Montano makes no sense against him at all. Moreover, the intentional torts were only alleged against John Doe, who was dismissed, and now Plaintiff contends Montano is actually John Doe, not Doe 2. Given the vague allegations and the inconsistent allegations and representations regarding Montano the demurrer for uncertainty is sustained.

5.

CASE #	CASE NAME	HEARING NAME
CVME2502324	OROSCO VS STATER BROS	MOTION FOR SANCTIONS

Tentative Ruling: Motion Denied. Plaintiff’s Request for Sanctions Denied.

Stater Bros. now moves for sanctions under Code of Civil Procedure section 128.7, seeking dismissal of the entire action with prejudice and monetary sanctions against Plaintiff and her counsel. It contends Plaintiff’s claims are objectively frivolous for two independent reasons: (1) Plaintiff’s deposition testimony contradicts essential elements of her claims, and (2) her claims are barred as a matter of law by shopkeeper’s privilege.

Plaintiff opposes and argues Stater Bros. applies the wrong legal standard, treating the motion as if it were a summary judgment motion rather than a sanctions motion. Plaintiff contends her testimony reflects the traumatic nature of the incident and does not negate the factual basis for her claims. She contends that shopkeeper’s privilege is an affirmative defense involving factual questions about reasonableness and excessive force, not appropriate for resolution on a sanctions motion. Plaintiff requests \$5,600 in sanctions for opposing the motion.

In reply, Stater Bros. argues the opposition confirms why sanctions are warranted as the numerous admissions during discovery destroy the basis for her complaint. It argues there is no evidentiary support for her claims and the motion should be granted.

An attorney or unrepresented party who presents a pleading, motion or similar paper to the court makes an implied certification as to its legal and factual merit, and a violation of this implied certification subjects the attorney and/or party to sanctions. (C.C.P., §